

25CHCV01309 25CHCV01309

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DEFENDANT'S MOTION TO COMPEL PLAINTIFF'S FURTHER
RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET TWO, AND FOR MONETARY
SANCTIONS

Motion filed on June 2, 2026.

MOVING PARTY: Defendant Joel Mosquera

RESPONDING PARTY: Plaintiff Deivi Ramirez Aguila

NOTICE: OK

RELIEF REQUESTED: Order compelling further verified
responses and production as to Requests for Production, Set Two, Nos. 1-15, and
monetary sanctions of \$167.45.

RULING: Continued.

BACKGROUND

Defendant filed the instant motion to compel further on June
2, 2026. Plaintiff opposed on June 12, 2026. Defendant replied on June 15,

2026.

LEGAL STANDARD

Where respondents object or respond inadequately to discovery requests, a motion lies to compel further responses, as to which respondent has the burden to justify the objections. (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255; Code Civ. Proc., § 2031.310, subd. (a) [motion to compel further responses lies “[o]n receipt of a response to an inspection demand....”].) A propounding party’s remedy when it deems objections in discovery responses to be without merit is to move for an order compelling further responses. (Catalina Island Yacht Club v. Superior Court (2015) 242 Cal.App.4th 1116, 1127.)

A different motion-- to compel compliance as agreed with a request for production of documents-- is based upon a showing that the respondents failed “to permit an inspection ‘in accordance with that party’s statement of compliance.’” (Standon Co. v. Superior Court (1990) 225 Cal.App.3d 898, 903. See also Code Civ. Proc., § 2031.320, subd. (a).) “If the party fails to make a production in accordance with its statement of compliance, the opposing party may file another motion to compel seeking compliance.” (Bd. of Registered Nursing v. Superior Court (2021) 59 Cal.App.5th 1011, 1033 [citing Code Civ. Proc., § 2031.320].) A separate motion to compel production of documents as agreed in responses cannot be substituted for a motion to compel further responses. (Standon Co. v. Superior Court (1990) 225 Cal.App.3d 898, 903.)

A document response must consist of: 1) An agreement to comply, stating whether the productions or inspection will be allowed “in whole or in part,” and that all documents or things in the possession, custody or control of the respondent, as to which no objection is made, will be included, by the date set for inspection (unless informally extended in writing, or the designated timing is subject to objection); 2) a representation of inability to comply, with a specification of any person believed or known to have possession of documents; or, 3) objections and specification of withheld documents. (Code Civ. Proc., §§ 2031.210, subd. (a), 2031.220, 2031.270, 2031.280.)

Compliance includes all documents or things in the demanded category that are in the “possession, custody, or control” of the responding party, such as from other corporations. (Roche v. Hyde (2020) 51

Cal.App.5th 757, 813 [quoting Code Civ. Proc., § 2031.220].)

With regard to document requests, a response expressing an inability to comply shall state that a diligent search and reasonable inquiry was made to locate the items, and the reason for an inability to comply, including that the item never existed, was lost or stolen, was destroyed, or is not in respondent's possession, along with the identity and address of anyone believed to have the document. (Code Civ. Proc., § 2031.230.)

"Any documents or category of documents produced in response to a demand for inspection, copying, testing, or sampling shall be identified with the specific request number to which the documents respond." (Code Civ. Proc., § 2031.280, subd. (a).)

However, when a party objects to discovery requests but also provides complete responses to the requests, then nothing is left to address in a motion to compel. (American Federation of State, County & Municipal Employees v. Metropolitan Water Dist. (2005) 126 Cal.App.4th 247, 269.)

DISCUSSION

The Court has reviewed the motion, opposition, and reply, and will not decide the motion on the merits at this time.

Defendant's moving papers asserted that Plaintiff produced no documents in response to Defendant's Requests for Production, Set Two, served March 25, 2026, and that each response was either an objection or an unfulfilled promise to comply. (Mot. At 2; Mosquera Decl. ¶¶ 10-11.)

Plaintiff's counsel declares that Plaintiff served verified responses with documents on or about April 25, 2026, before the instant motion was filed, including documents labeled as responsive to RFP Nos. 3, 4, 6, 8, 9, 11, and 12. (Irwin Decl. ¶¶ 5-9.)

In reply, Defendant acknowledges Plaintiff's production and corrects the prior statement, but contends that Plaintiff transmitted approximately 106 unpaginated, un-Bates-stamped pages, that no documents were transmitted for RFP Nos. 1, 2, 5, 7, 10, 13, 14, and 15, and that the production for the remaining requests is still deficient. (Reply at 1-3; Suppl. Mosquera Decl. ¶¶ 3-12.)

Plaintiff states that, to the extent clarification is necessary, he is willing to serve supplemental verified responses clarifying whether responsive nonprivileged documents have been produced, whether additional responsive nonprivileged documents exist, whether no responsive documents exist after diligent search and reasonable inquiry, and whether any responsive documents are being withheld on attorney-client privilege or work-product grounds. (Irwin Decl. ¶ 18.)

Given this record, the Court finds the better course is to require a focused meet and confer, and submission of a joint statement as to any outstanding requests, before reaching the merits.

CONCLUSION

The motion is CONTINUED to August 26, 2026, at 8:30 a.m. in Department F-46.

Prior to the continued hearing, the parties are ordered to meet and confer directly, not by email or letter. The meet and confer shall address each request still in dispute, whether Plaintiff will serve supplemental verified responses or further production prior to the continued hearing, any proposed limitations or redactions, and any remaining asserted defects under Code of Civil Procedure sections 2031.220, 2031.230, 2031.240, and 2031.280.

After any agreed supplementation, production, narrowing, or withdrawal of disputed issues, the parties shall file a joint statement of remaining issues no later than five court days before the continued hearing. As to each request still in dispute, the joint statement shall identify the request, the operative response, any production made or withheld, Defendant's position, and Plaintiff's position.

The Court reserves ruling on the merits and on Defendant's request for monetary sanctions.